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RTI Act, 2005 & RTI Rules, 2012

DISCLAIMER: *This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and the inclusion of recent changes, amendments, and updates to the relevant Acts, Rules, and Regulations, this document is intended as a study aid only. Readers and students are strongly recommended to refer to official government sources or gazettes for the most reliable and authoritative information.*

Right to Information Act, 2005

Chapter I: Preliminary

Section 1: Short title, extent and commencement

(1) This Act may be called the **Right to Information Act, 2005**. It shall come into force from **15.06.2005**. (2) It extends to the **whole of India** from **31.10.2019**.

 **LEGISLATIVE NOTE:** The Act was extended to the Union Territories of Jammu & Kashmir and Ladakh effective from **31.10.2019** following the Jammu and Kashmir Reorganisation Act, 2019 and the removal of Article 370.

(3) The following sections came into force on **15.06.2005**: **4(1), 5(1), 5(2), 12, 13, 15, 16, 24, 27, and 28**. (4) The remaining sections of the RTI Act became effective from **12.10.2005** (after **120 days** of enactment).

Section 2: Definitions

In this Act, unless the context otherwise requires, —

(a) "**Appropriate Government**" means in relation to a public authority which is established, constituted, owned, controlled or substantially financed by funds provided directly or indirectly—

- By the **Central Government** or **Union Territory** administration, the **Central Government**.
- By the **State Government**, the **State Government**.

(b) "**Central Information Commission**" means the Central Information Commission constituted under **Section 12(1)**.

(c) "**Central Public Information Officer**" means the **Central Public Information Officer** designated under **Section 5(1)** and includes a **Central Assistant Public Information Officer** designated under **Section 5(2)**.

(d) "**Chief Information Commissioner**" and "**Information Commissioner**" mean the Chief Information Commissioner and Information Commissioner appointed under **Section 12(3)**.

(e) "**Competent Authority**" means—

- The **Speaker** in the case of the House of the People or the Legislative Assembly of a State or a Union territory and the **Chairman** in the case of the Council of States or Legislative Council of a State.
- The **Chief Justice of India** in the case of the **Supreme Court**.
- The **Chief Justice of the High Court** in the case of a **High Court**.
- The **President** or the **Governor**, as the case may be, in the case of other authorities established or constituted by or under the Constitution.
- The **Administrator** appointed under **Article 239** of the Constitution.

(f) "**Information**" means any material in any form, including **records, documents, memos, e-mails, opinions, advices, press releases, circulars, orders, logbooks, contracts, reports, papers, samples, models, data material** held in any electronic form and information relating to any private body which can be accessed by a public authority under any other law for the time being in force.

(g) "**Prescribed**" means prescribed by rules made under this Act by the appropriate Government or the competent authority, as the case may be.

(h) "**Public authority**" means any authority or body or institution of self-government established or constituted—

- By or under the **Constitution**.

- By any other law made by **Parliament**.
- By any other law made by **State Legislature**.
- By notification issued or order made by the **appropriate Government**.
- It includes any body **owned, controlled or substantially financed** and **Non-Government organization** substantially financed directly or indirectly by funds provided by the appropriate Government.

(i) "**Record**" includes—

- Any **document, manuscript and file**.
- Any **microfilm, microfiche and facsimile copy** of a document.
- Any **reproduction of image or images** embodied in such microfilm (whether enlarged or not).
- Any other material produced by a **computer** or any other device.

(j) "**Right to information**" means the right to information accessible under this Act which is held by or under the control of any public authority and includes the right to —

- **Inspection** of work, documents, records.
- Taking **notes, extracts or certified copies** of documents or records.
- Taking **certified samples** of material.
- Obtaining information in the form of **diskettes, floppies, tapes, video cassettes** or in any other electronic mode or through **printouts** where such information is stored in a computer or in any other device.

(k) "**State Information Commission**" means the State Information Commission constituted under **Section 15(1)**.

(l) "**State Chief Information Commissioner**" and "**State Information Commissioner**" mean the State Chief Information Commissioner and the State Information Commissioner appointed under **Section 15(3)**.

(m) "**State Public Information Officer**" means the State Public Information Officer designated under **Section 5(1)** and includes a **State Assistant Public Information Officer** designated under **Section 5(2)**.

(n) "**Third party**" means a person other than the citizen making a request for information and includes a **public authority**.

Chapter II: Right to Information and Obligations of Public Authorities

Section 3: Right to Information

Subject to the provisions of this Act, all **citizens** shall have the right to information.

Section 4: Obligations of Public Authorities

(1) Every public authority shall—

- Maintain all its records duly **catalogued and indexed** and ensure that all records are **computerized** and connected through a network to facilitate access.
- Publish within **120 days** from the enactment:
 - The particulars of its organization, functions, and duties.
 - The powers and duties of its officers and employees.
 - The norms set for the discharge of its functions.
 - The rules, regulations, instructions, manuals, and records.
 - A directory of its officers and employees.

- The **monthly remuneration** received by each officer and employee.
 - The **budget allocated** to each agency, including plans and expenditure reports.
 - The manner of execution of **subsidy programs** and details of beneficiaries.
 - The names, designations, and other particulars of the **Public Information Officers**.
- Publish relevant facts while formulating important policies or announcing decisions affecting the public.
 - Provide as much information **Suo motu** to the public at regular intervals through various means of communication, including the internet, to minimize the need for formal requests.
 - Disseminate information widely in a form and manner easily accessible to the public, in local languages, and with cost-effectiveness.

(2) **Proactive Disclosure (Suo Motu) Guidelines:** Information related to **procurement, Public-Private partnerships, Transfer policy and orders, RTI applications, CAG & PAC paras, Citizen charter, grants, and Foreign Tours of PM/Ministers** should be disclosed.

(3) **Nodal Officer:** Each Central Ministry/Public Authority should appoint a senior officer (not below the rank of **Joint Secretary** or **Additional HOD** for attached offices) to ensure compliance with proactive disclosure guidelines.

Section 5: Designation of Public Information Officers

(1) Every public authority shall, within **100 days** from the enactment of this Act, designate as many officers as the **Central Public Information Officer (CPIO)** or **State Public Information Officer (SPIO)**, as the case may be, in all administrative offices and units.

(2) Every public authority shall designate an officer at each sub-divisional level or sub-district level as a **Central Assistant Public Information Officer (CAPIO)** or a **State Assistant Public Information Officer (SAPIO)**, as the case may be. Their role is to receive

applications for information or appeals under this Act and forward them forthwith to the CPIO or SPIO, or the senior officer specified under **Section 19(1)**, as the case may be. (3) Where an application for information or appeal is given to a CAPIO or a SAPIO, as the case may be, a period of **05 days** shall be added in computing the period for response.

GOVERNMENT DECISIONS: * All public authorities must ensure CPIO/CAPIO are designated immediately and their details are posted on websites. * Fees paid via **Cash, Demand Draft (DD), Banker's Cheque, Indian Postal Orders (IPOs)**, or **online payment** made payable to the accounts officer of the public authority must be accepted. * Applications must not be refused on the ground that they have not been submitted in a prescribed form.

Section 6: Request for Obtaining Information

(1) A person who desires to obtain any information under this Act shall make a request in writing or through electronic means in **English, Hindi**, or in the **official language** of the area in which the application is being made. The application must be accompanied by the prescribed fee and submitted to:

- The **CPIO** or **SPIO**, as the case may be.
- The **CAPIO** or **SAPIO**, as the case may be.

(2) An applicant making a request for information is **not required** to give any reason for the request or any other personal details except those that may be necessary for contacting them.

(3) Where an application is made to a public authority requesting information which is held by another public authority, or the subject matter of which is more closely connected with the functions of another public authority, the public authority to which such application is made shall transfer the application or the relevant part of it to that other public authority.

- The transfer must be done as soon as practicable but in no case later than **05 days** from the date of receipt of the application.

Section 7: Disposal of Request

(1) On receipt of a request under **Section 6**, the CPIO or SPIO shall, as expeditiously as possible and in any case within **30 days** of the receipt of the request, either provide the information on payment of the prescribed fee or reject the request for any of the reasons specified in **Sections 8 and 9**.

- **CRITICAL PROVISION:** Where the information sought concerns the **life or liberty of a person**, the same shall be provided within **48 hours** of the receipt of the request.

(2) If the CPIO or SPIO fails to give a decision on the request for information within the specified period, it shall be **deemed to have refused** the request.

(3) Where a decision is taken to provide the information on payment of any further fee, the CPIO or SPIO shall send an intimation to the person requesting the information.

- The period intervening between the dispatch of the said intimation and payment of fees shall be **excluded** for the purpose of calculating the **30-day period**.

(4) The CPIO or SPIO shall provide assistance to enable access to the information for sensorily disabled persons, including providing such assistance as may be appropriate for the inspection.

(5) **No fee** shall be charged from persons who are **Below Poverty Line (BPL)** as determined by the appropriate Government.

(6) Notwithstanding anything contained in **sub-section (5)**, the person making the request shall be provided the information **free of charge** where a public authority fails to comply with the prescribed time limits.

(7) Before taking any decision under **sub-section (1)**, the CPIO or SPIO shall take into consideration the representation made by a **third party** under **Section 11**.

(8) Where a request has been rejected, the CPIO or SPIO shall communicate to the person making the request:

- The reasons for such rejection.
- The period within which an appeal against such rejection may be preferred.
- The particulars of the **Appellate Authority**.

(9) Information shall ordinarily be provided in the form in which it is sought unless it would **disproportionately divert the resources** of the public authority or would be detrimental to the **safety or preservation** of the record in question.

Section 8: Exemption from Disclosure of Information

(1) Notwithstanding anything contained in this Act, there shall be **no obligation** to give any citizen: (a) Information, the disclosure of which would prejudicially affect the **sovereignty and integrity of India**, the security, strategic, scientific, or economic interests of the State, relations with a foreign State, or lead to incitement of an offence. (b) Information which has been expressly forbidden to be published by any **court of law or tribunal** or the disclosure of which may constitute **contempt of court**. (c) Information, the disclosure of which would cause a **breach of privilege** of Parliament or the State Legislature. (d) Information including **commercial confidence, trade secrets, or intellectual property**, the disclosure of which would harm the competitive position of a third party, unless the competent authority is satisfied that larger public interest warrants disclosure. (e) Information available to a person in his **fiduciary relationship** (e.g., relation between lawyer and client, patient and doctor), unless the competent authority is satisfied that the larger public interest warrants disclosure. (f) Information received in confidence from a **foreign Government**. (g) Information, the disclosure of which would **endanger the life or physical safety** of any person or identify the source of information

or assistance given in confidence for law enforcement or security purposes. (h) Information which would **impede the process of investigation** or apprehension or prosecution of offenders. (i) **Cabinet papers** including records of deliberations of the Council of Ministers, Secretaries, and other officers. (j) Information which relates to **personal information**, the disclosure of which has no relationship to any public activity or interest, or which would cause unwarranted invasion of the privacy of the individual.

- **PROVISO:** Information which cannot be denied to the Parliament or a State Legislature shall not be denied to any person.

(2) Notwithstanding anything in the **Official Secrets Act, 1923**, or any of the exemptions permissible under **sub-section (1)**, a public authority may allow access to information if public interest in disclosure outweighs the harm to the protected interests.

(3) Subject to the provisions of clauses (a), (c), and (i) of **sub-section (1)**, any information relating to any occurrence, event, or matter which has taken place, occurred, or happened **20 years** before the date on which any request is made under **Section 6** shall be provided.

- The decision of the Central Government regarding the computation of the **20-year period** shall be final.

GOVERNMENT DECISIONS: * Disclosure of **Annual Confidential Reports (ACR)** is generally exempt under **Section 8(1)(j)** but may be disclosed in the public interest. * **File notings** may be disclosed, except those containing information exempt under **Section 8**.

Section 9: Grounds for Rejection to Access in Certain Cases

Without prejudice to the provisions of **Section 8**, a CPIO or SPIO may reject a request for information where providing access would involve an **infringement of copyright** subsisting in a person other than the State.

Section 10: Severability

(1) If a request for access to information is rejected on the ground that it is in relation to information which is exempt from disclosure, access may be provided to that part of the record which **does not contain any exempt information** and which can reasonably be severed from any part that contains exempt information.

(2) Where access is granted to a part of the record, the CPIO or SPIO shall give a notice to the applicant informing them: (a) That only part of the record is being provided after severance of exempt information. (b) The reasons for the decision. (c) The name and designation of the person giving the decision. (d) The details of any **fees** calculated and the amount required to be deposited. (e) Their right with respect to review of the decision regarding non-disclosure or the fee.

Section 11: Third Party Information

(1) Where a CPIO or SPIO intends to disclose any information or record which relates to or has been supplied by a **third party** and has been treated as confidential, the CPIO or SPIO shall, within **05 days** from the receipt of the request, give a written notice to such third party.

- The notice shall invite the third party to make a submission in writing or orally regarding whether the information should be disclosed.
- **PROVISO:** Disclosure may be allowed if the public interest in disclosure outweighs in importance any possible harm or injury to the interests of such third party (except in the case of trade or commercial secrets protected by law).

(2) The third party shall, within **10 days** from the date of receipt of such notice, be given the opportunity to make representation against the proposed disclosure.

(3) Notwithstanding anything contained in **Section 7**, the CPIO or SPIO shall, within **40 days** after receipt of the request under **Section 6**, if the third party has been given an

opportunity to make representation, make a decision on whether or not to disclose the information.

(4) A notice given under **sub-section (3)** shall include a statement that the third party is entitled to prefer an appeal under **Section 19** against the decision.

Chapter III: The Central Information Commission

Section 12: Constitution of Central Information Commission

(1) The **Central Government** shall, by notification in the **Official Gazette**, constitute a body to be known as the **Central Information Commission**. (2) The Central Information Commission shall consist of:

- The **Chief Information Commissioner (CIC)**; and
- Such number of **Central Information Commissioners (IC)**, not exceeding **ten**, as may be deemed necessary. (3) The Chief Information Commissioner and Information Commissioners shall be appointed by the **President** on the recommendation of a committee consisting of:
 - The **Prime Minister**, who shall be the **Chairperson** of the committee;
 - The **Leader of Opposition** in the **Lok Sabha**; and
 - A **Union Cabinet Minister** to be nominated by the **Prime Minister**. (4) The Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in **law, science and technology, social service, management, journalism, mass media or administration and governance**. (5) The **CIC** or an **IC** shall not be a **Member of Parliament** or **Member of the Legislature** of any State or Union territory, or hold any other **office of profit** or connected with any **political party** or carrying on any **business** or pursuing any **profession**. (6) The headquarters of the Central Information Commission shall be at **Delhi**.

Section 13: Term of Office and Conditions of Service

(1) The **CIC** shall hold office for such term as may be prescribed by the **Central Government** and shall not be eligible for **reappointment**. No **CIC** shall hold office after the age of **65 years**.

📝 **LEGISLATIVE NOTE:** The term of office for the **CIC** and **ICs** is now prescribed as **3 years** as per the RTI Rules Amendment 2019 (Notification dated **24th Oct 2019**).

(2) Every **Information Commissioner** shall hold office for such term as may be prescribed by the **Central Government** or till he attains the age of **65 years**, whichever is earlier, and shall not be eligible for **reappointment** as such Information Commissioner.

- An **Information Commissioner** is eligible for appointment as **Chief Information Commissioner**, but his total term of office shall not exceed **5 years** in aggregate as the **IC** and **CIC**. (3) The **CIC** or an **IC** shall, before entering office, make and subscribe an **oath or affirmation** before the **President** or some other person appointed by him, according to the form set out in the **First Schedule**. (4) The **CIC** or an **IC** may, at any time, resign from office by writing under his hand addressed to the **President**. (5) The **salaries and allowances** and other terms and conditions of service of the **CIC** and **IC** shall be prescribed by the **Central Government**.

📝 **LEGISLATIVE NOTE (Updated 2025):** Pursuant to the 2019 Amendment Rules, the fixed monthly pay is as follows:

- **Chief Information Commissioner:** Rs. 2,50,000/-.
- **Information Commissioner:** Rs. 2,25,000/-. * If the appointee is in receipt of a **pension**, the pay shall be reduced by the amount of that pension.

Section 14: Removal of Chief Information Commissioner or Information Commissioner

(1) The **Chief Information Commissioner** or any **Information Commissioner** shall be removed from office only by order of the **President** on the ground of **proved misbehavior** or **incapacity**.

- This follows an inquiry by the **Supreme Court**, upon a reference made to it by the **President**. (2) The **President** may **suspend** from office, and if deemed necessary, prohibit attendance during the inquiry. (3) The **President** may by order remove the **CIC** or any **IC** if they:
 - (a) Have been convicted of an offence involving **moral turpitude**; or
 - (b) Are adjudged an **insolvent**; or
 - (c) Engage during their term in any **paid employment** outside the duties of office; or
 - (d) Are, in the opinion of the President, **unfit** to continue by reason of **infirmary of mind or body**; or
 - (e) Have acquired such **financial or other interest** as is likely to affect prejudicially their functions.

Chapter IV: The State Information Commission

Section 15: Constitution of State Information Commission

(1) Every **State Government** shall, by notification in the **Official Gazette**, constitute a body to be known as the **(Name of the State) Information Commission**. (2) The State Information Commission shall consist of:

- The **State Chief Information Commissioner (SCIC)**; and

- Such number of **State Information Commissioners (SIC)**, not exceeding **ten**, as may be deemed necessary. (3) The **SCIC** and **SICs** shall be appointed by the **Governor** on the recommendation of a committee consisting of:
- The **Chief Minister**, who shall be the **Chairperson**;
- The **Leader of Opposition** in the **Legislative Assembly**; and
- A **Cabinet Minister** to be nominated by the **Chief Minister**. (4) The **SCIC** and **SIC** shall be persons of eminence in public life with wide knowledge and experience in **law, science and technology, social service, management, journalism, mass media** or **administration and governance**. (5) The **SCIC** or a **SIC** shall not be a **Member of Parliament** or **Member of the Legislature** of any State or Union territory, or hold any other **office of profit** or connected with any **political party** or carrying on any **business** or pursuing any **profession**. (6) The headquarters of the State Information Commission shall be at such place in the **State** as specified.

Section 16: Term of Office and Conditions of Service

(1) The **State Chief Information Commissioner** shall hold office for such term as may be prescribed by the **Central Government** and shall not be eligible for **reappointment**. No **SCIC** shall hold office after the age of **65 years**.

 **LEGISLATIVE NOTE:** The term of office is currently **3 years** as prescribed by the Central Government via the 2019 Rules.

(2) Every **State Information Commissioner** shall hold office for such term as may be prescribed by the **Central Government** or till he attains the age of **65 years**, whichever is earlier, and shall not be eligible for **reappointment**.

- Total aggregate term as **SIC** and **SCIC** shall not exceed **5 years**. (3) The **SCIC** or a **SIC** shall, before entering office, make and subscribe an **oath or affirmation** before the **Governor** according to the form in the **First Schedule**. (4) The **SCIC** or a **SIC** may resign by writing to the **Governor**. (5) The **salaries and allowances payable**

to the **SCIC** and **SIC** shall be such as may be prescribed by the **Central Government**.

 **LEGISLATIVE NOTE (Updated 2025):** As per the amended rules:

- **SCIC and SIC Pay:** Rs. 2,25,000/- (fixed) per month.

Section 17: Removal of State Chief Information Commissioner or State Information Commissioner

(1) Removal is by order of the **Governor** on grounds of **proved misbehavior** or **incapacity** after a **Supreme Court** inquiry. (2) The **Governor** may **suspend** the official during the inquiry. (3) Other conditions of removal are the same as mentioned for the **CIC** under **Section 14(3)**.

Chapter V: Powers and Functions of Information Commissions, Appeal and Penalties

Section 18: Powers and Functions of Information Commissions

(1) It shall be the duty of the **Central Information Commission** or **State Information Commission**, as the case may be, to receive and inquire into a complaint from any person—

- (a) Who has been unable to submit a request or appeal to a **CPIO** or **SPIO**, due to non-appointment of such official, or where a **CAPIO** or **SAPIO** refused to accept a request or denied forwarding the application.
- (b) Who has been refused access to any information requested under this Act.
- (c) Who has not been given a response to a request for information or access to information within the time limit specified under this Act.
- (d) Who has been required to pay an amount of fee which he or she considers unreasonable.

- (e) Who believes that he or she has been given incomplete, misleading, or false information under this Act.

(2) Where the **CIC** or **SCIC**, as the case may be, is satisfied that there are reasonable grounds to inquire into the matter, it may initiate an inquiry in respect thereof. (3) The **CIC** or **SCIC**, as the case may be, shall have the same powers as are vested in a **civil court** while trying a suit under the **CPC, 1908**.

Section 19: Appeal

(1) Any person who does not receive a decision within the time specified, or is aggrieved by a decision of the **CPIO** or **SPIO**, as the case may be, may within **30 days** from the expiry of such period or from the receipt of such a decision prefer an appeal to such officer who is senior in rank to the **CPIO** or **SPIO** in each public authority. (2) Where an appeal is preferred against an order made by a **CPIO** or a **SPIO** under **Section 11** to disclose third party information, the appeal by the concerned third party shall be made within **30 days** from the date of the order. (3) A **second appeal** against the decision shall lie within **90 days** from the date on which the decision should have been made or was actually received, with the **CIC** or the **SIC**. (4) If the decision of the **CPIO** or **SPIO** against which an appeal is preferred relates to information of a **third party**, the **CIC** or **SCIC** shall give a reasonable opportunity of being heard to that third party. (5) An appeal shall be disposed of within **30 days** of the receipt of the appeal and not exceeding a total of **45 days** from the date of filing thereof, for reasons to be recorded in writing. (6) The **CIC** or **SCIC**, as the case may be, shall give notice of its decision, including any right of appeal, to the complainant and the public authority.

Section 20: Penalties

Penalties apply if a **CPIO** or **SPIO** has refused to receive an application, mala-fidely denied a request, failed to furnish information within specified time limits, knowingly given incorrect/incomplete/misleading information, or destroyed information.

(1) The Commission shall impose a penalty of Rs. 250/- per day till the application is received or information is furnished.

- The total amount of such penalty shall not exceed Rs. 25,000/-. (2) The Commission may also recommend **disciplinary action** against the **CPIO** or **SPIO** under the service rules applicable to them.

Chapter VI: Miscellaneous

Section 21: Protection of Action Taken in Good Faith

No suit, prosecution, or other legal proceeding shall lie against any person for anything which is in **good faith** done or intended to be done under this Act or any rule made thereunder.

Section 22: Act to have Overriding Effect

The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in the **Official Secrets Act, 1923**, and any other law for the time being in force.

Section 23: Bar of Jurisdiction of Courts

No court shall entertain any suit, application, or other proceeding in respect of any order made under this Act, and no such order shall be called in question otherwise than by way of an appeal under this Act.

Section 24: Act not to Apply to Certain Organizations

(1) This Act does not apply to **intelligence and security organizations** specified in the **Second Schedule**. (2) Information pertaining to allegations of **corruption** and **human rights violations** shall not be excluded. (3) In the case of information sought regarding allegations of violation of **human rights**, the information shall only be provided after the approval of the **Central Information Commission**. Such information shall be provided within **45 days** from the receipt of the request.

Section 25: Monitoring and Reporting

The **Central Information Commission** or **State Information Commission** shall, after the end of each year, prepare a report on the implementation of the provisions of this Act and forward it to the appropriate Government.

Section 26: Appropriate Government to Prepare Programs

(1) The appropriate Government may develop and organize **educational programs** to advance public understanding. (2) It shall encourage public authorities to participate in the development and organization of such programs. (3) It shall **train** Central and State Public Information Officers and produce relevant training materials for public authorities.

Section 27: Power to Make Rules by Appropriate Government

The appropriate Government may make rules regarding **application fees, print costs, terms of office, and salaries and allowances**.

Section 28: Power to Make Rules by Competent Authority

The competent authority may make rules regarding **application fees, print costs, terms of office, and salaries and allowances**.

Section 29: Laying of Rules

Every rule made by the **Central Government** shall be laid before each House of **Parliament**.

Section 30: Power to Remove Difficulties

The Central Government may, by order, remove difficulties within **02 years** from the date of the commencement of this Act.

Section 31: Repeal

The **Freedom of Information Act, 2002** is hereby repealed.

Schedules & Celebrations

- **The First Schedule:** Contains the **Oath or Affirmation** of **CIC/IC/SCIC/SIC**.
- **The Second Schedule:** Lists **Intelligence and security organizations** established by the Central Government.
- **RTI Week Celebration:** Observed from **5th October to 12th October**.

Right to Information Rules, 2012

Rule 1: Short title and commencement

(1) These rules may be called the **Right to Information Rules, 2012**. (2) They shall come into force from **31st July, 2012**.

Rule 2: Definitions

In these rules, unless the context otherwise requires,— (a) "**Act**" means the **Right to Information Act, 2005 (22 of 2005)**. (b) "**Commission**" means the **Central Information Commission** constituted under **Section 12(1)** of the Act. (c) "**First Appellate Authority**" means an officer in the public authority who is senior in rank to the **Central Public Information Officer** to whom an appeal under **Section 19(1)** of the Act lies. (d) "**Registrar**" means an officer of the Commission so designated and includes an **Additional Registrar, Joint Registrar, and Deputy Registrar**. (e) "**Section**" means a **Section** of the Act.

Rule 3: Application Fee

An application under **sub-section (1)** of **Section 6** shall be accompanied by a fee of **Rs. 10/-** by way of **cash** against proper receipt or by **demand draft** or **banker's cheque** or **Indian Postal Order** payable to the Accounts Officer of the public authority.

Rule 4: Fees for Providing Information

Fees for providing information under **sub-section (1)** of **Section 7** shall be charged at the following rates:

- **Rs. 2/-** for each page (in **A-4** or **A-3** size paper) created or copied.
- **Actual charge or cost price** of a copy in larger size paper.
- **Actual cost or price** for samples or models.
- For inspection of records, **no fee** for the **first hour**; and a fee of **Rs. 5/-** for each subsequent **hour (or fraction thereof)**.

Rule 5: Fees for Information in Electronic Format

Fees for providing information under **sub-section (5) of Section 7** shall be charged at the following rates:

- For information provided in **diskette or floppy**, **Rs. 50/-** per diskette or floppy.
- For information provided in **printed form** at the price fixed for such publication or **Rs. 2/-** per page of photocopy for extracts from the publication.

No fee under **Rule 3** (Application Fee) and **Rule 4** (Information Fees) shall be charged from any person who is **Below Poverty Line (BPL)**.

- **Requirement:** A copy of the **certificate** issued by the appropriate Government in this regard must be submitted along with the application.

Rule 6: Mode of Payment of Fee

Fees under these rules shall be paid by way of:

1. **Cash** against proper receipt.
2. **Demand Draft.**
3. **Banker's Cheque.**
4. **Indian Postal Order.**
5. **Electronic means** (where facility is available).

All payments are to be made to the **Accounts Officer** of the public authority.

Appeal Procedures

Rule 7: Appointment of Nodal Officer

Every public authority shall designate an officer not below the rank of a **Deputy Secretary** or equivalent as a **Nodal Officer** for the implementation of these rules.

The **Central Government** shall appoint an officer not below the rank of **Additional Secretary** to the Government of India as the **Secretary to the Commission**.

Rule 8: Appeal to the Commission

Any person aggrieved by an order of the **First Appellate Authority** or who has not received a decision within the time specified in **Section 19(1)**, may prefer a second appeal to the **Central Information Commission** on a plain paper with the following particulars:

- Name and address of the appellant.
- Name and address of the **CPIO**.
- Particulars of the order against which the appeal is made.
- Brief facts leading to the appeal.
- Prayer or relief sought.
- Grounds for the prayer or relief.
- Verification by the appellant.

Rule 9: Documents to be Accompanied with the Appeal

Every appeal made to the Commission shall be accompanied by the following documents (self-attested copies):

- Copy of the **application** submitted to the CPIO.
- Copy of the **reply**, if any, received from the CPIO.
- Copy of the **appeal** made to the First Appellate Authority.
- Copy of the **order**, if any, received from the First Appellate Authority.
- Copies of other documents relied upon by the appellant.
- An **index** of the documents referred to in the appeal.

An appeal may be returned to the appellant if it is not accompanied by the documents specified in **Rule 8**.

- The purpose of returning the appeal is to allow the appellant to remove **deficiencies** and file the appeal complete in all respects.

Rule 10: Procedure in Deciding Appeals

(1) On receipt of an appeal, if the Commission is not satisfied that it is a fit case to proceed with, it may dismiss the appeal after recording its reasons and giving the appellant an **opportunity of being heard**.

- **Note:** No appeal shall be dismissed only on the ground that it has not been made in the **specified format**. (2) An appeal to the Commission is processed if the **First Appellate Authority** (or a competent person) has made a **final order** on the appeal. (3) An appeal is also processed where no final order has been made by the First Appellate Authority and a period of **45 days** from the date the appeal was preferred has elapsed.

In deciding the appeal, the Commission may:

- Receive oral or written evidence on oath.
- Inspect documents or records.
- Hear the **CPIO**, the **Appellate Authority**, or the **Third Party**.
- Receive evidence on **affidavits**.

Rule 11: Presence of the Appellant before the Commission

The appellant shall be informed of the date at least **15 days** before the hearing. The appellant may, at his discretion, be present in person or through an authorized representative.

Rule 12: Presentation by the Public Authority

The public authority may authorize any officer to present its case.

Rule 13: Service of Notice by Commission

Notice by the Commission may be served by:

- Registered post.
- Speed post.
- Fax or Electronic mail.
- Through the **Nodal Officer** of the public authority.

Rule 14: Withdrawal of Appeal

The appellant may, at any time before a final decision is taken, withdraw the appeal.

Service Conditions (2019 Amendments Integrated)

Rule 15: Salary and Allowances

The salaries and allowances of the **Chief Information Commissioner** and **Information Commissioners** shall be as follows:

- **Chief Information Commissioner:** Rs. 2,50,000/- per month.
- **Information Commissioner:** Rs. 2,25,000/- per month.

 **LEGISLATIVE NOTE:** These rates were standardized by the RTI (Term of Office, Salaries, Allowances and Other Terms and Conditions of Service) Rules, 2019, replacing the earlier parity with Election Commissioners. (Updated 2025/2026).

Rule 16: Term of Office

The **Chief Information Commissioner** and every **Information Commissioner** shall hold office for a period of **3 years** from the date on which they enter upon office.

Rule 17: Leave Sanctioning Authority

The authority competent to sanction leave shall be:

- **The President** for the **CIC**.
- **The Governor** for the **SCIC**.
- **The CIC or SCIC** for the **IC or SIC** respectively.

Rule 18: Medical Facilities and Accommodation

- **Medical:** Entitled to medical treatment and hospital facilities as provided in the CGHS. At places where CGHS is not operational, **Central Service (Medical Attendance) Rules, 1944** apply.
- **Accommodation:** Eligible for use of **official residence** of the type admissible, subject to availability, on payment of the prescribed license fee. If not provided, **HRA** is payable at the rate admissible to an officer of equivalent pay.

Rule 19: Leave Travel Concession (LTC) and Allowances

The **CIC, IC, SCIC, and SIC**, as the case may be, who are in government service on the date of their appointment to the Commission, shall be deemed to have **retired from their parent service**.

- The **CIC, IC, SCIC, and SIC** shall be entitled to **LTC, TA, and Daily Allowance** as admissible to an officer holding a post carrying the same pay in the Central or State Government.
- **Dearness Allowance:** The **CIC, IC, SCIC, and SIC** shall be entitled to draw dearness allowance at the **admissible rate**.

- **HRA:** Where the officer is not provided with or does not avail themselves of government accommodation, they may be paid **House Rent Allowance (HRA)** at the rate admissible to an officer holding a post carrying the same pay in the Central or State Government.
- (a) The **CIC, IC, SCIC, and SIC** shall be entitled to rights of leave as per the admissibility to an officer holding a post carrying the same pay in the **Central Government or State Government**, as revised from time to time. (b) **Cash Payment in lieu of unutilized Earned Leave:** They shall be entitled to encashment of **fifty per cent (50%)** of earned leave to their credit at the time of completion of tenure.

The First Schedule: Forms of Oath or Affirmation

[See Sections 13(3) and 16(3)]

Form of Oath or Affirmation for CIC/IC/SCIC/SIC

"I, [Name], having been appointed **Chief Information Commissioner/Information Commissioner/State Chief Information Commissioner/State Information Commissioner:**

- **Swear in the name of God / Solemnly affirm**
- That I will bear **true faith and allegiance** to the **Constitution of India** as by law established;
- That I will uphold the **sovereignty and integrity of India**;
- That I will **duly and faithfully** and to the best of my ability, knowledge, and judgment perform the **duties of my office** without fear or favor, affection or ill-will;
- And that I will uphold the **Constitution and the laws.**"

The Second Schedule: Exempted Organizations

[See Section 24]

The following **Intelligence and Security Organizations** established by the **Central Government** are exempt from the general provisions of the RTI Act, except for information pertaining to allegations of **corruption** and **human rights violations**:

1. **Intelligence Bureau**
2. **Research and Analysis Wing (R&AW)** of the Cabinet Secretariat
3. **Directorate of Revenue Intelligence (DRI)**
4. **Central Economic Intelligence Bureau**
5. **Directorate of Enforcement (ED)**
6. **Narcotics Control Bureau (NCB)**
7. **Aviation Research Centre**
8. **Special Frontier Force**
9. **Border Security Force (BSF)**
10. **Central Reserve Police Force (CRPF)**
11. **Indo-Tibetan Border Police (ITBP)**
12. **Central Industrial Security Force (CISF)**
13. **National Security Guards (NSG)**
14. **Assam Rifles**
15. **Sashastra Seema Bal (SSB)** (formerly Special Service Bureau)
16. **Special Branch (CID)**, Andaman and Nicobar
17. **The Crime Branch-C.I.D.-CB**, Dadra and Nagar Haveli
18. **Special Branch**, Lakshadweep Police

Appendix: Format of Appeal to the Central Information Commission

[See Rule 8]

An appeal to the Commission must contain the following particulars:

1. **Appellant's Details:** Name and address.
2. **CPIO Details:** Name and address of the **Central Public Information Officer** who gave the reply or to whom the application was addressed.
3. **Appellate Authority Details:** Name and address of the **First Appellate Authority** who decided the first appeal.
4. **Application Particulars:** Details of the original RTI application.
5. **Order Particulars:** Details of the order(s) (including **reference numbers**) against which the appeal is preferred.
6. **Brief Facts:** A concise summary of facts leading to the appeal.
7. **Relief Sought:** The specific prayer or relief requested from the Commission.
8. **Grounds for Relief:** The legal or factual basis for seeking the relief.
9. **Verification:** A statement by the appellant verifying that the contents are true to their knowledge.
10. **Enclosures:**
 - Self-attested copy of the **original application**.
 - Self-attested copy of the **PIO's reply** (if any).
 - Self-attested copy of the **first appeal**.
 - Self-attested copy of the **Appellate Authority's order** (if any).
 - An **index** of the documents attached.

Summary of Key Statutory Timelines & Limits (2025/2026 Reference)

- **Standard Response Time:** 30 days.
- **Life or Liberty Response Time:** 48 hours.
- **Transfer of Application:** 05 days.
- **Third Party Notice:** 05 days.
- **First Appeal Filing:** 30 days from receipt of decision.
- **Second Appeal Filing:** 90 days from receipt of First Appeal order.
- **Penalty for Delay:** Rs. 250/- per day up to a maximum of Rs. 25,000/-.

Additional Provisions & Recent Statutory Updates (2025-2026)

Section 44(3) of DPDP Act: Amendment to RTI Section 8(1)(j)

The **Digital Personal Data Protection (DPDP) Act, 2023** has significantly modified the landscape of information disclosure regarding personal data.

- **Total Prohibition on Personal Data:** Section 8(1)(j) has been substituted to broadly exempt "**personal information**" from disclosure.
- **Removal of Public Interest Override:** The previous proviso which allowed for the disclosure of personal information if the "**larger public interest**" justified it has been effectively removed by this amendment.
- **Impact on Scrutiny:** Information that was previously accessible—such as the **financial declarations, educational backgrounds, and disciplinary records** of public officials—is now more strictly guarded under the guise of protecting personal data.

 **LEGISLATIVE NOTE:** The DPDP Act, 2023 (Section 44(3)) has shifted the balance toward privacy, making personal information an absolute exemption without the traditional "Public Interest" test previously used by PIOs. (Updated 2025/2026).

Enhanced Digital Access (2025/2026)

Public authorities have moved toward a "Digital First" approach for RTI compliance.

- **OTP Authentication:** The Central RTI Online Portal has introduced a **One-Time Password (OTP)** requirement sent via **email** for users to check the status of their queries or file new applications.
- **Proactive E-Disclosure:** Under **Section 4(1)(b)**, public authorities are now mandated to host a **Transparency Audit** report on their websites annually. For the year **2025-2026**, authorities must submit **Quarterly Returns** digitally to the Commission.
- **Online Appeals:** Second appeals to the **Central Information Commission** can now be filed and tracked completely online, with options for hearings via **video conferencing**.

Intelligence & Security Organizations (Updated Second Schedule)

The list of organizations exempt under **Section 24** has been periodically updated to include modern strategic units.

- **Strategic Forces Command:** Included in the Second Schedule.
 - **CBI, NIA, and NATGRID:** Continue to remain in the Second Schedule, exempt from RTI except for cases involving **corruption** or **human rights violations**.
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Summary of Monetary Limits & Charges (Ready for Publication)

Item Description	Prescribed Fee / Limit
RTI Application Fee	Rs. 10/-
Photocopy (A4/A3)	Rs. 2/- per page
Inspection (1st Hour)	Free
Inspection (Subsequent)	Rs. 5/- per hour
Diskette / CD	Rs. 50/- per unit
Daily Penalty for PIO	Rs. 250/- per day
Maximum Penalty	Rs. 25,000/-
CIC Fixed Salary	Rs. 2,50,000/-
IC / SIC Fixed Salary	Rs. 2,25,000/-